

CAUSE NO. C-1-CV-26-003814

CITY OF LONE STAR, TEXAS,
Condemnor,

v.

RAMIREZ FAMILY HOLDINGS, LLC;
MARIA RAMIREZ; DAVID RAMIREZ;
and FIRST HILL COUNTRY BANK,
Condemnees.

IN THE COUNTY COURT AT LAW NO. 2

TRAVIS COUNTY, TEXAS

PETITION IN CONDEMNATION

TO THE HONORABLE JUDGE OF SAID COURT:

Condemnor City of Lone Star, Texas files this Petition in Condemnation against Condemnees Ramirez Family Holdings, LLC, Maria Ramirez, David Ramirez, and First Hill Country Bank, and respectfully shows the Court the following:

I. DISCLOSURE STATEMENT

Pursuant to applicable Texas rules, Condemnor states that City of Lone Star, Texas is a Texas home-rule municipality and has no parent corporation. No publicly held corporation owns ten percent or more of its stock.

II. PARTIES

Condemnor City of Lone Star, Texas is a Texas home-rule municipality located in Travis County, Texas. Its principal administrative office is located at 100 Civic Plaza, Lone Star, Texas 78744.

Condemnee Ramirez Family Holdings, LLC is a Texas limited liability company that, according to the Travis Central Appraisal District and county deed records reviewed by Condemnor, owns the real property affected by this proceeding. Ramirez Family Holdings, LLC may be served through its registered agent, Maria Ramirez, at 1842 East Loop Road, Lone Star, Texas 78744.

Condemnees Maria Ramirez and David Ramirez are named because they may claim an ownership, managerial, or beneficial interest in the affected property. They may be served at 1842 East Loop Road, Lone Star, Texas 78744.

Condemnee First Hill Country Bank is named because it may claim a lien, deed of trust, or security interest in the affected property. It may be served through its registered agent at 600 Congress Avenue, Suite 1900, Austin, Texas 78701.

III. JURISDICTION AND VENUE

This is a statutory condemnation proceeding under Chapter 21 of the Texas Property Code. The property to be acquired is located in Travis County, Texas. Venue is proper in Travis County, Texas.

The Court has jurisdiction to appoint three disinterested real property owners residing in Travis County as special commissioners to assess the damages, if any, resulting from the acquisition described in this Petition.

IV. AUTHORITY TO CONDEMN AND PUBLIC USE

The City of Lone Star is authorized to acquire property interests necessary for public streets, roadways, drainage, sidewalks, utilities, transportation improvements, and related public infrastructure.

The property interests sought in this proceeding are necessary for the East Loop Road Expansion Project, a public roadway and drainage improvement project intended to widen East Loop Road, improve turning movements, add sidewalks, relocate drainage facilities, and improve public safety along the East Loop corridor.

The acquisition is for a public use. Condemnor has determined that the property interests described below are necessary for the project.

V. PROPERTY TO BE ACQUIRED

This proceeding concerns Parcel 14, affecting property commonly known as 1842 East Loop Road, Lone Star, Travis County, Texas 78744. The property is identified by Travis Central Appraisal District account number 04-2198-0314 and is associated with approximately 5.60 acres of commercial frontage property.

Condemnor seeks to acquire the following property interests:

Interest	Approximate Area	Description
Fee simple acquisition	0.84 acres	A strip of land along the East Loop Road frontage for roadway widening, sidewalk, drainage, and related public improvements.
Temporary construction easement	0.22 acres	A temporary easement adjacent to the fee acquisition area for grading, staging, driveway reconstruction, drainage work, and temporary construction access.

The metes and bounds description of the fee simple acquisition is attached as Exhibit A. A parcel plat and depiction of the acquisition areas is attached as Exhibit B. The temporary construction easement terms are attached as Exhibit C. These exhibits are incorporated by reference as if fully set forth herein.

Note for the court file: Exhibit A, Exhibit B, and Exhibit C are referenced by this Petition. If any exhibit is not present in the uploaded matter file, counsel should confirm that the complete petition package has been obtained.

VI. PRE-SUIT NEGOTIATION AND BONA FIDE OFFER

Condemnor and Condemnees have been unable to agree on the amount of compensation to be paid for the property interests described above.

On January 12, 2026, Condemnor sent an Initial Offer Letter to Ramirez Family Holdings, LLC for Parcel 14 in the amount of \$350,000. The letter identified the East Loop Road Expansion Project, described the fee acquisition and temporary construction easement, and stated that the Texas Landowner Bill of Rights was enclosed.

On January 12, 2026, Condemnor also transmitted the Texas Landowner Bill of Rights by certified mail, return receipt requested, tracking number 9489 0090 0027 6123 4415 77.

On February 5, 2026, Condemnor received a written appraisal summary from Lone Star Valuation Group, MAI, concluding that just compensation for Parcel 14 was \$425,000, consisting of \$300,000 for the part acquired in fee, \$100,000 for remainder damages, and \$25,000 for the temporary construction easement.

On February 20, 2026, Condemnor sent a Final Offer Letter in the amount of \$435,000. The final offer exceeded the appraisal summary amount by \$10,000 and requested a response by March 9, 2026.

On March 4, 2026, counsel for Ramirez Family Holdings, LLC rejected the final offer and raised concerns regarding access, parking, truck circulation, tenant impacts, and alleged understatement of remainder damages.

VII. COMPENSATION

Condemnor alleges that the amount of \$435,000 represents Condemnor's final written offer for the acquisition of the property interests described above. Condemnor deposits or tenders compensation as required by applicable law and further requests that compensation be determined through the statutory condemnation process.

Condemnor does not admit that Condemnees are entitled to any amount greater than Condemnor's final offer. Condemnor reserves all rights to contest claimed damages, including alleged remainder damages, alleged access impairment, alleged parking loss, business-related claims, and cost-to-cure items not supported by competent evidence.

VIII. REQUEST FOR APPOINTMENT OF SPECIAL COMMISSIONERS

Because the parties have been unable to agree on compensation, Condemnor requests that the Court appoint three disinterested real property owners residing in Travis County as special commissioners to assess the damages, if any, resulting from this acquisition.

Condemnor requests that the special commissioners set a hearing, provide notice as required by law, hear evidence regarding compensation, and issue an award.

IX. POSSESSION

Condemnor seeks the right to take possession of the property interests described in this Petition after complying with all applicable statutory requirements, including payment or deposit of the commissioners' award if required.

X. PRAYER

WHEREFORE, PREMISES CONSIDERED, Condemnor City of Lone Star, Texas respectfully prays that:

1. The Court appoint three disinterested real property owners residing in Travis County as special commissioners;
2. The special commissioners set a hearing and provide notice as required by law;
3. The special commissioners assess damages, if any, for the acquisition of the property interests described in this Petition;
4. Condemnor be granted the right to acquire and possess the property interests described herein upon compliance with applicable law;
5. Costs be assessed as provided by law; and
6. Condemnor receive all other relief to which it may be entitled.

Respectfully submitted,

/s/ Allison P. Grant

Allison P. Grant

State Bar No. 24000017

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ATTORNEYS FOR CONDEMNOR

CITY OF LONE STAR, TEXAS

CERTIFICATE OF SERVICE

I certify that on March 18, 2026, a true and correct copy of this Petition in Condemnation was served in accordance with the Texas Rules of Civil Procedure on all counsel and parties entitled to service, including the following:

Recipient	Method	Address / Email
Ramirez Family Holdings, LLC	Certified mail and process server	c/o Maria Ramirez, Registered Agent, 1842 East Loop Road, Lone Star, Texas 78744
Maria Ramirez	Certified mail and process server	1842 East Loop Road, Lone Star, Texas 78744
David Ramirez	Certified mail and process server	1842 East Loop Road, Lone Star, Texas 78744
First Hill Country Bank	Certified mail	600 Congress Avenue, Suite 1900, Austin, Texas 78701
Linda K. Morales, Counsel for Ramirez Family Holdings, LLC	Email	linda.morales@morales-propertylaw.example

/s/ Allison P. Grant

Allison P. Grant

DEMO DOCUMENT NOTE

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